IN THE DISTRICT COURT HELD AT ADANSI ASOKWA ON MONDAY, THE 24TH DAY OF MARCH, 2025 BEFORE HER WORSHIP MRS. LINDA FREMAH BOAMAH-OKYERE, ESQ.

SUIT NO. AR/AA/DC/A1/05/2025

AFIA ADDAE SUING FOR HERSELF AND ON BEHALF OF ADUANA FAMILY OF ABOABO NO. 2

V

AKUA NKRUMAH

JUDGMENT

BACKGROUND:

1. The instant Writ of Summons was filed on 19th November, 2024 wherein the Plaintiff claimed against the Defendant as follows:

   "a. Declaration of title of all that two-acre cocoa farms lying and situated at the respective places commonly known and called "Boasoafie" and "Boasoa akyire"

   i. "Boasoafie" one (1) acre and bounded by the properties of Ante Abena Nimoh, Asantewaa, Adwoa Serwaa and Yaa Korkor

   ii. "Boasoa akyire" one and half (1 ½) acres and bounded by the properties of Papa Yaw Dick, Ante Abena Nimoh, Ante Ama Dapaah, Agya Kwamena and Brother Yaw, which cocoa farms the Defendant is claiming title without any justification

b. Recovery of possession of the said cocoa farms

c. Cost

2. The Defendant pleaded not liable to relief (a)(i) but pleaded liable to relief (a)(ii). Also, the Defendant conceded that the Plaintiff was entitled to recovery of possession of the farm at Boasoa akyire but maintained that the Plaintiff was not entitled to recover possession of the land at Boasoafie. This court encouraged the parties to have the matter settled through the court connected ADR but both parties declined to attempt settlement. Orders were then made for written statements and subsequently witness statements to be filed which said orders were duly complied with by both parties. The Plaintiff called on two witnesses whilst the Defendant called one in proof of their respective cases. Neither of the parties relied on any documentary proof.
3. The Plaintiff sued in a representative capacity as the Obaapanin of the Aduana family of Adansi Aboabo No. 2 and her position as the Obaapanin was not in dispute, hence she has good capacity to bring this action on behalf of the family.

PLAINTIFF'S CASE:

4. The Plaintiff's case is that the two lands were acquired in its virgin state by her late uncle by name Yaw Simpe. According to the Plaintiff, Yaw Simpe subsequently allowed Plaintiff's nephews by

names Yaw Wae, Kwabena Kusi and Kwaku Forkuo to cultivate cocoa on the two lands. The Plaintiff stated that Yaw Wae and Kwabena Kusi passed away leaving Kwaku Forkuo to manage the farms till his death. It is the Plaintiff's case that her elder sister called Yaa Nekyewaa @ Yaa Akyirem succeeded Kwaku Forkuo and inherited the cocoa farms in dispute. According to the Plaintiff, Yaa Akyirem appointed the Defendant's late husband by name Yaw Manu to manage the said farms on her behalf and by extension on behalf of the Aduana family of Aboabo No. 2. The Plaintiff also averred that even though Yaw Manu and the Defendant were not properly married per custom, after the death of Yaw Manu in 2019, the Defendant has taken possession of the two cocoa farms and enjoyed same till date and that all attempts at amicable settlement has proven futile. The Plaintiff maintained that the two farms belong to the Aduana family of Aboabo No.2 and thus the Defendant has no legitimate claim to the land.

5. By way of addition to the Plaintiff's case, PW1 testified that Yaa Akyirem handed over the farms to Yaw Manu to manage same on her behalf due to her old age. According to PW1, when Yaa Akyirem died, she was succeeded by Abena Amoakoaa who was also succeeded by Yaa Donkor. PW1 averred that Abena Amoakoaa and Yaa Donkor maintained the status quo and left the cocoa farms in the care of the late Yaw Manu upon inheriting same. PW1 averred that when Yaw Manu also passed away, the family met and gave the

farms to a caretaker but the Defendant forcefully took possession of the farms from the caretaker claiming that the farms belonged to her late husband, Yaw Manu. PW2 repeated the evidence of PW1 thereby corroborating the Plaintiff's evidence.

DEFENDANT'S CASE:

6. It is the Defendant's case that she was married to the Plaintiff's deceased brother for eighteen (18) years before his demise and had two children by him aged eight (8) and five (5) years. According to the Defendant, the one-acre land at Boasoafie was gifted to her late husband by his uncle called Kwame Forkuo which said land the Defendant averred that she cultivated with her husband from *"scratch"*. The Defendant further averred that the one and half acre land at Baosoa akyiri was part of the inheritance received by her late husband after the death of Kwame Forkuo whom her husband had succeeded customarily. According to the Defendant, the land at Boasoa akyire already had some over-aged cocoa trees on it so she and her late husband cut down those trees and recultivated the cocoa trees currently thereon. It is the Defendant's case that the land at Boasoafie does not belong to the Plaintiff's family and that it was the intention of her late husband that the farm be maintained for the sustenance and care of herself and their two children. The Defendant admitted that the land at Boasoa akyire belongs to the Plaintiff's

family however it is her position that she is entitled to a fair share of that land because she cultivated it together with her late husband.

7. DW1 is a daughter of the Defendant. Her testimony is that she used to go to the farms with her mother and late step father, Yaw Manu. She essentially corroborated the Defendant's evidence.

ISSUES FOR DETERMINATION:

8. The issues arising out of these facts are as follows:
   I. Whether or not the one-acre land situate at Boasoafie belongs to the Plaintiff's family
   II. Whether or not the said land was gifted to the Defendant's husband by name, Yaw Manu
   III. Whether or not the Defendant is entitled to a share of the one and half acre land at Boasoa akyire

BURDEN OF PROOF:

9. Per **sections 11 (4) and 12(1)(2) of the Evidence Act, 1975 (Act 323),** the general rule is that in civil cases, the burden of proof is on the balance or the preponderance of the probabilities. See the cases of **Faibi v State Hotels Corporation [1968] GLR 471** and **In re Ashalley Botwe Lands; Adjetey Agbosu & Others. [2003-2004] SCGLR 420**. In the case of **Bisi v Tabiri alias Asare [1987-88] 1 GLR 360 at 361** the Supreme Court explained the standard of proof required in civil cases as follows;

"The standard of proof required of a Plaintiff in a civil action was to lead such evidence as would tilt in his favour the balance of probabilities on the particular issue. The demand for strict proof of pleadings had however never been taken to a call for an inflexible proof either beyond reasonable doubt or with mathematical exactitude or with such precision as would fit a jigsaw puzzle. Preponderance of evidence became the trier's belief in the preponderance of probability. But 'probability' denoted an element of doubt or uncertainty and recognized that where there were two choices it was sufficient if the choice selected was more probable than the choice rejected…"

10. In the case of **Citizen Kofi Entertainment Concept Ltd. v Guinness Ghana Breweries Ltd. [2012] 46 GMJ 167**, the Court of Appeal per Tanko JA at page 176 held that *'the general principle of law is that it is the duty of a plaintiff to prove his case, i.e., he must prove what he alleges. In other words, it is the party who raises in his pleadings an issue essential to the success of his case who assumes the burden of proving it. The burden only shifts to the defence to lead sufficient evidence to tip the scales in his favour when on a particular issue, the plaintiff leads some evidence to prove his claim, if not he loses on that particular issue'*. See also **Danso - Dapaah v Falcon Crest Investment Ltd. & Others [2015] 89 GMJ 148 at 171**.
11. In land cases specifically, the Plaintiff must succeed on the strength of his own case and not on the weakness of the defendant's case. The onus lies with the Plaintiff to prove his case before he can rely on any

weaknesses in the Defendant's case. See the case of **Dokutso Tei Kwabla v Lands Commission and Another [2017-2018] 1 SCGLR 497 at 509**. The Supreme Court has held in the case of **George Kwadwo Asante & Another v Madam Abena Amponsah & Another (Civil Appeal No. J4/64/2021) dated 20th January, 2022**, that *if the plaintiff failed to discharge the onus on him and also failed to make a case for the reliefs sought, then he could not rely on the weakness of the defendant's case to ask for relief. However, if the plaintiff made a case which would entitle him to relief if the defendant offered no evidence, then if the case offered by the defendant disclosed any weakness which supported the plaintiff's claim, then the plaintiff was entitled to rely on the weakness of the defendant's case to strengthen his case. This position of the law is amply supported by sections 11 and 12 of the Evidence Act, 1975 (Act 323).* See also **Odametey v Clouch [1989-90] 1 GLR 14, SC**. Also, in the case of **Okudzeto Ablakwa (No.2) v Attorney General & Obetsebi-Lamptey (No.2) [2012] 2 SCGLR 845 at 867**, the court held that, *'…what this rule literally means is that if a person goes to court to make an allegation, the onus is on him to lead evidence to prove that allegation, unless the allegation is admitted. If he fails to do that, the ruling on that allegation will go against him. Stated more explicitly, a party cannot win a case in court if the case is based on allegation which he fails to prove or establish.'*

ANALYSIS & EVALUATION OF EVIDENCE:

12. All the three issues will be discussed together.
13. The Plaintiff traced her family's root of title to the two lands to a certain Yaw Simpe who according to the Plaintiff, acquired the lands in their virgin state. She also outlined the members of the family who worked and cultivated the lands into cocoa farms namely Yaw Simpe himself, Yaw Wae, Kwabena Kusi and Kwaku Forkuo. The Plaintiff does not dispute that Defendant's husband, Yaw Manu also worked on the land. She averred however that, Yaw Manu just like Yaw Wae, Kwabena Kusi and Kwaku Forkuo worked on the land as members of the family for the benefit of the family.
14. In respect of the one and half acre land at Boasoa akyire, the Defendant admitted that same belongs to the Plaintiff's family. She is however claiming a fair share of that property because she has invested her industry into the cultivation of the land with her late husband.
15. It is my view that once the land belongs to the Plaintiff's family, the Defendant, who is a non - member of the family does not have any interest in the said land. The Defendant would have been entitled to some form of remuneration based on agreement between herself and the Plaintiff had she been appointed as a caretaker of the farm but there is no evidence on the record to that effect. The fact as is corroborated by the Defendant herself is that it was her husband who was on the land by virtue of his membership of the Plaintiff's family. The Defendant worked on the land probably to support Yaw

Manu as a dutiful partner. There was no agreement between the Plaintiff's family and the Defendant, i.e., the family did not sanction the Defendant's presence on the land. I see no legally sound reason why the Defendant should be entitled to any portion of the Plaintiff's family land.

16. The Defendant alleges that the one-acre land at Boasoafie was gifted to her husband and by virtue of that gift, the Plaintiff is not entitled to her reliefs in respect of the Boasoafie land. In the case of **Barko v Mustapha (1964) GLR 78**, the Supreme Court held that the following ingredients must exist in order to sustain a claim of existence of a customary gift: *publicity, acceptance and placing the donee in possession*. The burden is on the alleged donee to prove the existence of a customary gift. In this instance, the Defendant who is seeking to rely on the gift could not prove same. She alleged that the land was gifted to her husband by Kwaku Forkuo. There was no evidence led by the Defendant to show that Kwaku Forkuo had the capacity to gift the land to Yaw Manu. The undisputed evidence on record is that Kwaku Forkuo was one of the members of the Plaintiff's family who fell in the line of succession of Yaw Simpe and gained control and/or possession of the subject lands for the benefit of the family.
17. This means that the lands were not the personal property of Kwaku Forkuo to enable him gift same to anyone else without the consent and concurrence of the principal members of his family. The Defendant did not lead any such evidence of consent by the

Plaintiff's family, neither did she lead contrary evidence as to whether Kwaku Forkuo personally owned the land which he allegedly gifted to the Defendant's husband. Accordingly, I reject the allegation of the gift as same is unfounded.

18. It is my view that the Plaintiff has satisfied the burden which rested on her to prove on the balance of probabilities that the lands belong to her family i.e., the Aduana family of Aboabo No. 2 and judgment is accordingly entered in her favour as follows;

"a. Declaration of title to all the two cocoa farms lying and situate at the respective places commonly known and called "Boasoafie" and "Boasoa akyire"

i. "Boasoafie" farm being one (1) acre and bounded by the properties of Ante Abena Nimoh, Asantewaa, Adwoa Serwaa and Yaa Korkor

"Boasoa akyire" farm being one and half (1 ½) acres and bounded by the properties of Papa Yaw Dick, Ante Abena Nimoh, Ante Ama Dapaah, Agya Kwamena and Brother Yaw

b. Recovery of possession of the said cocoa farms

15. There shall be no orders as to costs as Plaintiff has waived the cost.

SGD

MRS. LINDA FREMAH BOAMAH-OKYERE

MAGISTRATE

24/03/2025